

		In addition, as Judgment Debtors' counsel was not served with the subpoenas (ROAs 2041 and 2047, at ¶¶ 4, 5), notice for the subpoenas also was defective. The motions to quash are therefore GRANTED. Both sides' sanctions requests are DENIED. Although Judgment Debtors are the prevailing parties on these motions, neither included a proper sanctions request in their notice of motion to identify against whom sanctions are sought, in what amount, and on what authority. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v. City of Fresno</i> (1984) 151 Cal.App.3d 635, 647.) All requests for sanctions on these motions are therefore DENIED. Counsel for Judgment Debtors is ordered to give notice of these rulings.
16.	<i>Kaiser Foundation Health Plan vs. Sharp Memorial Hospital</i> 2026-01566981	Before the court is the continued hearing on three motions the parties have filed seeking to seal a variety of documents relating to the petition to confirm the underlying arbitration award and the opposition thereto. <u>Respondents' Motion to Seal</u> On July 9, 2026, the court first heard the motion of respondents Sharp Memorial Hospital, Sharp Coronado Hospital & Healthcare Center, Sharp Chula Vista Medical Center, and Grossmont Hospital Corporation dba Sharp Grossmont Hospital (collectively, Respondents) to seal portions of the opposition brief and supporting documents they filed in response to the petition to confirm the arbitration award filed by petitioner Kaiser Foundation Health Plan (Petitioner). At that time, the court continued the motion to today because (1) Respondents had not filed under seal or otherwise lodged unredacted versions of the documents they sought to seal, and (2) the court was not convinced the proposed redactions/sealing was sufficiently narrowly tailored to meet the requirements of the Rules of Court. Respondents have now filed some supplemental documents in support of their motion to seal. First, they have filed a sealed version of the declaration of Daron L. Tooch in support of the opposition to the petition to confirm that includes the Tooch declaration and the exhibits thereto without any redactions. Second, they have provided a supplemental declaration of David J. Tassa that attaches a new proposed, public version of the Tooch declaration. The new Tooch declaration now includes many of the exhibits to his declaration that were omitted from the original Tooch

declaration. These exhibits now have proposed redactions instead of the wholesale sealing of all exhibits. Although this is significant progress the court still is not convinced the proposed redactions are sufficiently narrowly tailored. Moreover, the new proposal still seeks to seal the entire Exhibit A to the Toooh declaration and that court is not convinced that is appropriate. The court also is confused. The body of the Toooh declaration says an agreement with a certain title is attached as Exhibit A, but the agreement attached as Exhibit A has an entirely different title. The court is not convinced it is appropriate to redact the name of the agreement as used in the body of the Toooh declaration.

Finally, the court notes it still is not able to locate an unredacted version of Respondents' opposition to the petition to confirm. The court has a redacted version of the opposition (ROA 13), but it cannot locate an unredacted version. As such, not only can the court not rule on the motion to seal, it cannot rule on the petition because it lacks the complete opposition.

From the court's review of Respondents' filings, it seems Respondents themselves do not believe all the proposed redactions or sealings are necessary, but rather are concerned that, if they are not overly inclusive in what they seek to seal, Petitioner may accuse them of breaching various agreements.

Petitioner's Two Motions to Seal

On July 23, 2026, the court first heard Petitioner's motions to seal (1) portions of the petition to confirm the arbitration award and (2) portions of the opposition to Respondents' request to vacate the award. At that time, the court noted Petitioner's efforts to limit its redactions to only portions of many documents, but the court nonetheless found the redactions to be overbroad. The court also noted it found the request to seal the entirety of some exhibits to be overbroad. Finally, the court noted Petitioner failed to file a proof of service showing either of its motions to seal was served on Respondents

The court therefore continued the hearing on Petitioner's motions to today for Petitioner to file proofs of service. The court also invited Petitioner to revisit the scope of its proposed redactions.

In response, Petitioner has filed proofs of service showing service of its motions on Respondents. Petitioner, however,

		has not filed any other response to the court's July 23, 2026 order. Counsel for all parties should appear at the hearing to discussion these motions. The court is inclined to continue the motions at a minimum, and potentially deny them outright. It sounds as though the parties may need to meet and confer as to the appropriate scope of any redactions because it appears some of Respondents' requests are based solely on concerns over Petitioner's reactions. The parties also will be ordered to file correlation tables that list by title every document that includes any redactions or sealing (e.g., the Toooh Declaration in support of the opposition to the petition to confirm [there is no need at this time to separately list each exhibit to the document]), the register of action (ROA) number for the public, redacted version of the document, and the ROA number for the sealed version of the document. This is essential not only to help the court rule on the motions to seal, but also on the underlying petition.
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